

		Next, the motion states: “Exhibits ‘A’ to ‘Y’ are the investment agreements which contain a confidentiality clause and include private financial investment information typically sealed by courts.” (Motion: 5:2-4.) The motion does not identify these documents more specifically; however, they are presumably exhibits to the Complaint. Regardless, as stated above, the “private financial investment information” is not specifically identified. In support of this portion of the motion, Defendants cite only <i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal.App.4th 97, wherein the Court <i>declined</i> to seal a settlement agreement with a confidentiality clause. <i>Huffy</i> reaffirmed that “a settlement agreement which had a confidentiality provision could not be sealed unless there was a showing of serious injury which would result from public disclosure.” (<i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal.App.4th 97, 106.) Similarly, no such showing has been made herein. Lastly, while Defendants <i>briefly</i> cite authority which discusses sealing trade secrets (See ¶18 of Sunil Brahmbhatt Declaration, citing <i>In re Providian Credit Card Cases</i> (2002) 96 Cal.App.4th 292, 298-299), Defendants have not identified any trade secrets, included within any filing. Based on all the above, the motion is DENIED.
53	Auto Finance Solutions, LLC vs. Citicars 24-01439282	Motion for Leave to File Amended Complaint Plaintiff Auto Finance Solutions, LLC’s motion for leave to file a Second Amended Complaint is GRANTED. The Civil Procedure Code provides that “[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., § 473, subd. (a)(1).) The case law is clear that leave to amend should be granted liberally at all stages of the proceedings in order to accomplish substantial justice for both parties and to resolve cases on their merits. (See <i>Hirsa v. Superior Court</i> (1981) 118 Cal.App.3d 486, 488-489; <i>IMO Development Corp. v. Dow Corning</i> (1982) 135 Cal.App.3d 451, 461.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend” (<i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530 [citations and quotations omitted].) Plaintiff has sufficiently complied with the procedural requirements for a motion for leave to amend. (Sadana Decl. ¶¶ 5-7,10, Exhs. 1-2.) No opposition was filed and no prejudice was identified from the filing of the proposed Second Amended Complaint. Plaintiff’s motion is granted. Plaintiff is ordered to file and serve the Second Amended Complaint attached as Exhibit 1 to the Declaration of Kavita Sadana by May 22, 2026. Plaintiff to give notice of this ruling.

54	Hernandez vs. Orchard Supply Hardware LLC 23-01314896	Motion to Be Relieved as Counsel of Record The Motion to be Relieved brought by John C. Carpenter, Esq. and Asa O. Eaton, Esq. is CONTINUED to 6/05/2026 at 8:30 AM, to ensure complete compliance with California Rules of Court rule 3.1362. While the mandatory declaration form indicates counsel confirmed their client’s last known address by mail, telephone and conversation, the declaration does <i>not</i> indicate this confirmation occurred within the past 30 days, as required. (§3(b) of ROA No. 105.) Counsel requests the Court grant the motion regardless, as “Plaintiff by and through her Guardian Ad Litem has remained out of contact with Counsel despite numerous attempts to re-establish contact through her known address, email address, and telephone number” (§3(c) of Declaration [ROA No. 105]); however, California Rules of Court rule 3.1362 requires efforts to make contact within the last 30 days, <i>regardless</i>. The alternative to a declaration which establishes the address is “current” (meaning confirmed within 30 days) is a declaration which states: “The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.” (Cal. Rules of Court rule 3.1362(d)(1)(B).) In an abundance of caution, and to ensure proper notice to the identified client (in this case a minor proceeding via Guardian Ad Litem), the Court continues this hearing and requests an additional declaration, which addresses the efforts made to locate Plaintiff’s current address and the timing in which they were made. This declaration shall be filed no later than 9 court days prior to the continued hearing date. Additionally, Counsel is directed to give notice of the continued hearing date to all parties in this action, as well as the client, and to file a proof of service which establishes compliance with the above, no later than 9 court days prior to the continued hearing date.
56	Gonzalez vs. New Century Enterprises, LLC 25-01507855	Demurrer to Complaint Defendant New Century Enterprises, LLC demurs to the third, fifth, and sixth causes of action asserted in the Complaint filed by Plaintiff Rosa Maria Gonzalez. The demurrer is OVERRULED as to the third cause of action and SUSTAINED as to the fifth and sixth causes of action. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.)